



Motor-Cycle Crash-Helmets (Restriction of Liability) Act 1985

1985 CHAPTER 28

An Act to exempt persons other than the actual offender from criminal liability in respect of the offence of driving or riding on a motor cycle in contravention of regulations requiring the wearing of crash-helmets.

[13th June 1985]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section 32 of the Road Traffic Act 1972 (power to make regulations requiring persons driving or riding on motor cycles to wear protective headgear) is amended as follows.

Amendment
of Road
Traffic Act
1972.

(2) In subsection (3) (under which any person who drives or rides on a motor cycle in contravention of regulations under section 32 is guilty of an offence), at the end there shall be added “; but notwithstanding any enactment or rule of law no person other than the person actually committing the contravention shall be guilty of an offence by reason of the contravention unless the person actually committing the contravention is a child under the age of sixteen years.”.

1972 c. 20.

Short title,
commence-
ment and
extent.

2.—(1) This Act may be cited as the Motor-Cycle Crash-Helmets (Restriction of Liability) Act 1985.

(2) This Act shall come into force at the end of the period of two months beginning with the day on which it is passed.

(3) This Act does not extend to Northern Ireland.